

**DISPOSITION OF CHARGES**

PD 46B-142A (Rev. 1-06)

CASE NO.
2022-25301
BOOK & PAGE NO.
Page 1 of 2
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Officer Bernabel,		Arianny		34 Precinct
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
21126	967772		July 1, 2019	
RANK/NAME OF COMPLAINANT				COMMAND
General Counsel Matthew Kadushin				CCRB -Administrative Prosecution Unit
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
April 19, 2023		October 3, 2023		October 3, 2023
TRIAL COMMISSIONER				
Honorable Anne E. Stone				

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522, while assigned to the 34 Precinct and on duty, on the telephone inside of the 34 Precinct, New York County, abused her authority as a member of the New York City Police Department, in that she refused to provide her name to § 87(2)(b) without police necessity.	GUILTY	It is recommended that Respondent forfeit three (3) vacation days for Specification 1 and three (3) vacation days for Specification 2 to run concurrently, for a total forfeiture of three (3) vacation days.	
2. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522, while assigned to the 34 Precinct and on duty, on the telephone inside of the 34 Precinct, New York County, abused her authority as a member of the New York City Police Department, in that she refused to provide her shield number to § 87(2)(b) without police necessity.	GUILTY		

Reviewed by Deputy Commissioner of Trials

DEPUTY COMMISSIONER

11/20/23

DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

POLICE COMMISSIONER

11/30/24
DATE



DISPOSITION OF CHARGES
PD 468-142A (Rev. 1-06)

CASE NO.
2022-25301
BOOK & PAGE NO.
Page 2 of 2
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Officer Bernabel,		Arianny		34 Precinct
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
21126	967772		July 1, 2019	
RANK/NAME OF COMPLAINANT				COMMAND
General Counsel Matthew Kadushin				CCRB -Administrative Prosecution Unit
DATE OF CHARGES	DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED	
April 19, 2023	October 3, 2023		October 3, 2023	
TRIAL COMMISSIONER				
Honorable Anne E. Stone				

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
3. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522, while assigned to the 34 Precinct and on duty, on the telephone inside of the 34 Precinct, New York County, was discourteous in that she intentionally disconnected the phone call between herself and § 87(2)(b) without police necessity.	NOT GUILTY	See Page 1.	
4. Police Officer Arianny Bernabel, on or about September 21, 2021, at approximately 0853, while assigned to the 34 Precinct and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB regarding the August 20, 2020 phone call between herself and § 87(2)(b) (As amended)	NOT GUILTY		

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

11/20/23
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

1/30/24
DATE



POLICE DEPARTMENT

November 20, 2023

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-25301
Police Officer Arianny Bernabel	:	
Tax Registry No. 967772	:	
34 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Theresa Freitas, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Stuart London, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522 hours, while assigned to the 34 Precinct and on duty, on the telephone inside of the 34 Precinct, New York County, abused her authority as a member of the New York City Police Department, in that she refused to provide her name to § 87(2)(b) without police necessity.

A.G. 304-11

COMPLIANCE WITH THE
NYC RIGHT TO KNOW ACT

2. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522 hours, while assigned to the 34 Precinct and on duty, on the telephone inside of the 34 Precinct, New York County, abused her authority as a member of the New York City Police Department, in that she refused to provide her shield number to § 87(2)(b) without police necessity.

A.G. 304-11

COMPLIANCE WITH THE
NYC RIGHT TO KNOW ACT

3. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522 hours, while assigned to the 34 Precinct and on duty, on the telephone inside of the 34 Precinct, New York County, was discourteous in that she intentionally disconnected the phone call between herself and § 87(2)(b) without police necessity.

A.G. 304-06, Page 1, Paragraph 2

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION, AND
VALUES OF THE NYPD

4. Police Officer Arianny Bernabel, on or about September 21, 2021, at approximately 0853 hours, while assigned to the 34 Precinct and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB regarding the August 20, 2020 phone call between herself and § 87(2)(b) (as amended)

A.G. 304-10

MAKING FALSE STATEMENTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 3, 2023. Respondent, through her counsel, entered a plea of Not Guilty to the charged misconduct. The CCRB-APU presented a hearsay case, entering into evidence Complainant's statement to the

CCRB, as well as the audio recordings and transcripts of Complainant's telephone call to the 34 Precinct on the date in question and Respondent's September 21, 2021 interview with CCRB. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of Specifications 1 and 2 and recommends the forfeiture of three (3) vacation days for each specification to run concurrently. Additionally, I find Respondent Not Guilty of Specifications 3 and 4

ANALYSIS

The following is a summary of the relevant facts which are not in dispute. On August 20, 2020 at approximately 1522 hours, Complainant made a telephone call to the 34 Precinct, to obtain a complaint report number for an incident which occurred several days earlier. Complainant recorded the call. Respondent, who was assigned as the telephone switchboard operator ("TS") for the third platoon, answered. Complainant asked "Hi, I have to ask who you are? Would you kindly give me your name and your badge number, please?" Almost immediately, the phone disconnected. A CCRB complaint regarding the incident was filed, and thirteen months later, on September 21, 2021, Respondent was interviewed by investigators pursuant to the provisions of P.G. 211-14 (now A.G. 318-11).

Complainant did not appear to testify at trial; in evidence is the recording and transcript of his August 26, 2020 phone interview with CCRB. (CCRB Ex. 2, 2A) In that interview, Complainant explained that on the date in question, he called the 34 Precinct ten times before the eleventh call was answered by Respondent. He identified the operator's voice as female, but complained that she spoke so quickly that he could not hear the name she gave when she answered the call. He alleged that immediately thereafter the call was terminated, telling the

CCRB investigator, “So, after 11 calls I finally get through. I politely ask the name and badge number of the person answering and I get hung up on.” (CCRB Ex. 2A at 10)

The audio recording and official transcript of the phone call at issue are also in evidence. (CCRB Ex 1, 1A) At the start of the recording, apparently while initiating the call, Complainant essentially narrates that he has tried calling the 34 Precinct nine times¹ over the course of the day in order to obtain the report number for a harassment complaint he made on an earlier date, and his calls have not been answered. (CCRB Ex.1 at 00:00-00:33) The recording continues for several minutes with Complainant speaking over the sound of the automated operator at the precinct instructing the caller to enter the number of the party they wish to speak with. After ringing for several minutes, the call is answered by Respondent, whose first couple of words are unintelligible; she then can be heard saying, “How can I help you?” Complainant asks for her name and badge number; approximately one second later there are three quick beeps, after which Complainant is heard saying, “Oh, hung up on me. How nice.”(CCRB Ex.1 at 03:57-04:13)

In her trial testimony, Respondent denied intentionally disconnecting the call. She confirmed that she was the third platoon “TS” operator at the 34 Precinct on August 20, 2020, and that she answered the phone when Complainant called. Listening to the recording of the call she admitted that it was very difficult to understand what she said when she answered the call, because she spoke so quickly. Respondent explained that on the date in question, she was a relatively new officer, out of the Academy for about eight months, and when Complainant asked for her identifying information, she was unsure if she was permitted to provide it over the phone. She went to ask her sergeant and upon returning to the call, it had been disconnected. (Tr. 12-13) During cross-examination, Respondent acknowledged that she now knows that she is required to

¹ There is a minor discrepancy between Complainant’s CCRB interview and the contemporaneous recording of the incident regarding the number of phone calls he made, which is not relevant to the ultimate issues in this decision.

provide her name and shield number upon request, including over the telephone. (Tr. 17)

Respondent repeatedly denied intentionally hanging up on Complainant, insisting, "I know it sounds like that. But I don't know if it was by accident. But I did not hang up the phone. I did not do that." (Tr. 14)

Respondent went on to recount what transpired during her official interview with CCRB, which occurred on September 21, 2021, over one year after the disconnected call in question. She recalled that prior to, and indeed, for most of the interview she believed the topic of the investigation was a phone call from a different member of the public which concerned a noise complaint. Towards the end of the interview, the CCRB investigator played the recording of Complainant's call, and Respondent realized that they were talking about two different phone calls. She described feeling "led on" by the investigators, who knew that the interaction with Complainant lasted mere seconds, yet continued to allow her to answer questions about the other call, which was a more fulsome conversation. (Tr. 13-14) Respondent explained that when she realized that the subject of the investigation was a different incident, she did not ask to clarify because she was scared, and did not know she was allowed to do so. (Tr. 21) She also noted that her attorney, who was present during the interview, failed to correct the record. (Tr. 14, 20) Respondent testified that prior to her CCRB interview, she was not aware of Complainant's identity. (Tr. 16)

Complainant's hearsay statement consisted mostly of his inquiring about other complaints he lodged with CCRB, the general difficulties he has experienced on various occasions when calling the 34 Precinct, and concluded with his assertion that Respondent hung up on him. (CCRB Ex. 1A at 16-17)

Specifications 1 and 2: Refusal to Provide Name and Shield

Respondent stands charged with wrongfully refusing to provide her name and shield number; it is undisputed that she never provided her shield number and that her name, if provided initially, was not understood by Complainant, and was not repeated when he asked for it.

While maintaining that she did give her name upon answering, Respondent acknowledged that she spoke too quickly to be understood. She further explained that she was unsure of the rules regarding giving her shield number over the phone. (Tr. 12) Upon careful review, the tribunal found that although Respondent's greeting was indeed unintelligible at normal speed, when listening at a slower speed it is clear that, in fact, she did not provide her name. When answering the call Respondent stated "Good evening, 34 Precinct, how can I help you." (CCRB Ex. 1 at 03:37-03:39) Respondent admitted that she did not immediately state her name and provide her shield number when Complainant made the request. Indeed she stepped away from the call to ask an unidentified supervisor if she was required to do so over the phone.

Administrative Guide 304-11 and its predecessor, Patrol Guide 203-09, both clearly direct officers to, "Courteously and clearly state your rank, name, shield number and command...to anyone who requests you to do so." The question for this Tribunal is whether Respondent's hesitation to do so was reasonable under the circumstances. Although Respondent was a fairly new officer, she had been assigned as the "TS" operator multiple times to prior to this occasion, and had been out of the Academy for about eight months. At that point in her career, based upon her training and experience, Respondent should have been aware that NYPD officers are required to provide their name, shield, and command upon request, whether that request occurs in person or over the telephone. There were no extenuating circumstances which

would have made it impractical or unsafe to immediately comply with Complainant's very straightforward request for this basic identifying information. Based on the foregoing, I find that Respondent's alleged ignorance of the rules regarding her obligation to provide this information to Complainant was not reasonable, and find her guilty of Specifications 1 and 2.

Specification 3: Discourtesy

Respondent has been charged with violating A.G. 304-06, being discourteous by intentionally disconnecting a phone call with a member of the public. It is undisputed that the phone call in question was terminated; however, there remains a question as to how that occurred. The record consists of two conflicting accounts: Complainant's hearsay claim that Respondent intentionally hung up on him after he asked for her name and shield, and Respondent's insistence that she is unsure how the call was disconnected, but that she did not intentionally end it. The record lacks any additional independent evidence of how and why the call was terminated.

During her official interview, Respondent heard the recording of the phone call for the first time. Upon hearing Complainant state, "Oh, hung up on me. How nice," Respondent spontaneously declared, "I definitely didn't hang up." (CCRB Ex. 2A at 25) She maintained that she did not hang up, even when questioned further by the investigators:

CCRB Investigator: So, you're saying that the phone-, that you didn't hang up but the, the phone call just got disconnected.

Respondent: Yeah, I would never- I wouldn't hang up. There's no reason to.

CCRB Investigator: Okay. Alright and-, okay, and like what makes you think this phone call just got disconnected you know, and it wasn't you that you know that disconnected it?

Respondent: Because I, you know, if I answer the phone, it's to see what's going on and help him and I wouldn't just hang up if-, just because he asked for my name and shield.

(CCRB Ex. 2A at 26)

Respondent was forthright during her testimony. Her explanations as to why she would not have disconnected the call make sense. There are many possible ways in which the call could have ended that do not involve an intentional act by Respondent and the record has insufficient evidence to establish a deliberate hang-up by Respondent. While the APU prosecutor need not rule out each and every possible scenario, Complainant's unsubstantiated hearsay claim that the call was deliberately terminated alone, is not sufficient to support a finding of misconduct.

Accordingly, I find Respondent Not Guilty of Specification 3.

Specification 4: Misleading Statement

Respondent has been charged with making a misleading statement in the course of her September 21, 2021 official interview with CCRB. In support of this specification, CCRB-APU directed the tribunal's attention to multiple line and page numbers, approximately eight and a half full pages, in the transcript of her interview, which was admitted into evidence as CCRB Exhibit 3A. (Tr. 9-10) I reviewed the transcript and the recording² in their entirety, paying particular attention to the specified pages; I also revisited the parties' summations. I find that CCRB-APU has failed to meet its burden of proof by a preponderance of the credible evidence that Respondent provided a misleading official statement.

In order to prevail on this charge, CCRB-APU must prove that Respondent intended to "misdirect the factfinder, and materially alter the narrative" by omission of material facts, repeated claims of not remembering an incident which a reasonable person would recall, or altering a prior statement when confronted with independent evidence. (A.G. 304-10) What I found in my review of the CCRB interview was an understandably nervous young officer who,

² CCRB Ex. 3 in evidence

in good faith, answered the questions posed and tried to recall a seconds-long telephone exchange, which occurred over a year before the interview.

Presumably, the CCRB investigators who interviewed Respondent familiarized themselves with Complainant's recording of the phone call, as well as the August 26, 2020 interview with him, prior to meeting with Respondent and her attorney. Having done so, it is clear to this tribunal that Respondent was recalling a different call about a noise complaint when she was first answering CCRB's questions. She continued to provide the investigators details about this other call when they should have known the exchange Respondent described was inapplicable to the incident CCRB was investigating because that conversation went no further than saying hello, what is your name and shield number. Indeed, no noise complaint was referred to in the subject call. When Respondent was asked about the incident she stated, "So, I still helped him with the matter. I think it was a noise complaint." (CCRB Ex. 3A at 5-6) The interview continued on this way:

CCRB Investigator: Right. Okay, so it seems like you believed there was, there was an incident involving noise, like a noise complaint that he was making and that was the reason he was calling the, the command. Right?

Respondent: Yep.

CCRB Investigator: How many times like can you approximate he called? Did, did he call more than once? Was it just one phone call?

Respondent: I, I'm not s-, I don't remember.

CCRB Investigator: Okay. And specifically so-, it seems like he called to make this, this complaint and you sent a unit?

Respondent: Yes, I definitely did send a unit and I think he kept like-, he probably kept calling. I'm not-, I just don't remember if he called like more than once or twice.

(CCRB Ex. 3A at 8-9)

Respondent continued telling them about the noise complaint call until the recording was finally played. At that moment, it is clear that Respondent realized she was being questioned about a different phone call. (CCRB Ex. 3A at 25)

Contrary to CCRB-APU's arguments during summation, Respondent's confusion and failure to forcefully object during her interview were an understandable response to answering multiple questions about one incident and then suddenly being presented with another incident entirely. In this case it is not evidence of an intent to mislead. (Tr. 26-28) Compounding an already unsettling situation was the fact that the interview was conducted virtually, via Microsoft TEAMS, which can make communication even more challenging. In spite of this, Respondent continued to answer the questions which were posed to her, steadfastly insisting that she did not intentionally disconnect the call with Complainant. (CCRB Ex. 3A at 26-28) Her testimony at trial was candid and convincing, in particular as she described being nervous and unsure of whether she was permitted to ask questions, or make demands during an official interview.

Based on the foregoing, I find that CCRB-APU has failed to prove by a preponderance of the credible evidence that Respondent provided a misleading official statement to CCRB in violation of A.G. 304-10. I therefore find Respondent not guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 1, 2019, has been found guilty of refusing to provide her name and shield number upon request during a phone call while she was assigned as the "TS" operator on August 20, 2020. The presumptive penalty for each of these specifications is three (3) vacation days; the mitigated penalty is training. CCRB recommends the presumptive penalty of three (3) vacation days for each specification to run concurrently.

As discussed above, Respondent's hesitation to provide this information is tantamount to refusal to do so. While I credited Respondent's explanation that she was unsure of the rules, the requirement to do so is not new and is quite clearly spelled out in Departmental guidelines as well as in training. Ignorance of this straightforward, well-known rule is not a reasonable excuse under these circumstances. The requirement for an officer to identify themselves to individuals they are interacting with is fundamental to police accountability, and must be strictly adhered to.

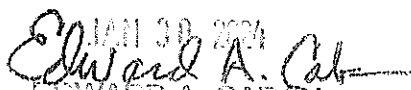
While Respondent admitted that she did not immediately state her name and provide her shield number when asked, and stated that she now knows what is required, a penalty which corrects the inappropriate behavior, deters future misconduct, and provides notice of the consequences of failing to comply with this important rule is warranted. Taking into account the totality of the facts in this matter, I recommend the presumptive penalty set forth in the Disciplinary Matrix, that Respondent forfeit three (3) vacation days for Specification 1 and three (3) vacation days for Specification 2 to run concurrently, for a total forfeiture of three (3) vacation days.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

JAN 30 2024

EDWARD A. CAPRONI
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

November 15, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Police Officer Arianny Bernabel
DADS #: 2022-25301

Dear Commissioner Caban:

The above-referenced case was tried on October 3, 2023, by Administrative Prosecutor Theresa Freitas, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Anne E. Stone, dated November 1, 2023. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer Arianny Bernabel, was charged with the following:

1. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522, while assigned to 034 PCT and on duty, on the telephone inside of the 34th Precinct, New York County, abused her authority as a member of the New York City Police Department, in that she refused to provide her name to § 87(2)(b) without police necessity. (*As amended*)

PG 203-09, page 1, paragraph 1 PUBLIC CONTACT—GENERAL [now encompassed by Administrative Guide 304-11—COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT]

2. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522, while assigned to 034 PCT and on duty, on the telephone inside of the 34th Precinct, New York County, abused her authority as a member of the New York City Police Department, in that she refused to provide her shield number to § 87(2)(b) without police necessity. (*As amended*)

PG 203-09, page 1, paragraph 1 PUBLIC CONTACT – GENERAL [now encompassed by Administrative Guide 304-11 COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT]

3. Police Officer Arianny Bernabel, on or about August 20, 2020, at approximately 1522, while assigned to 034 PCT and on duty, on the telephone inside of the 34th Precinct, New York County, was discourteous, in that she intentionally disconnected the phone call between herself and § 87(2)(b) without police necessity. (*As amended*)

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT—GENERAL [now encompassed by Administrative Guide 304-06, page 1, paragraph 1 PROHIBITED CONDUCT]; PG 200-02 MISSION, VISION, AND VALUES OF THE NEW YORK CITY POLICE DEPARTMENT

4. Police Officer Arianny Bernabel, on or about September 21, 2021, at approximately 0853, while assigned to 034 PCT and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB regarding the August 20, 2020 phone call between herself and § 87(2)(b) (*As amended*)

PG 203-08 FALSE OR MISLEADING STATEMENTS [now encompassed by Administrative Guide 304-10 MAKING FALSE STATEMENTS: MISLEADING STATEMENT]

The Court found Police Officer Bernabel Guilty of Specification One (1) and Specification Two (2) and recommended that CCRB’s recommended penalty of the forfeiture of three (3) vacation days be imposed. CCRB agrees with ADCT Stone’s findings and penalty recommendations and CCRB respectfully requests that you accept these findings and penalty recommendations as to Specification One (1) and Specification Two (2).

The Court found Police Officer Bernabel Not Guilty of Specification Three (3) and Specification Four (4). It is respectfully requested that you reject ADCT Stone’s findings as to Specification Three (3) and Specification Four (4) and find Police Officer Bernabel Guilty of Specification Three (3) and Specification Four (4) and that you accept CCRB’s recommended penalties of the forfeiture of five (5) vacation days for Specification Three (3), and the forfeiture of thirty (30) vacation days and dismissal probation for Specification Four (4).

STATEMENTS OF FACTS

CCRB adopts the statements of facts articulated in ADCT Stone’s Draft Decision.

ARGUMENT

CCRB disagrees with the Court’s finding that Police Officer Bernabel was not guilty of Specification Three (3) and its conclusion that Police Officer Bernabel “was forthright during her testimony” (Draft Decision page 8) and that “there are many possible ways in which the call could have ended that do not involve an intentional act by Respondent” (Draft Decision page 8).

The evidence submitted clearly shows that the call was disconnected by Police Officer Bernabel. In the audio recording of the phone call and in the complainant’s statement to CCRB, he states that Police Officer Bernabel hung up the phone on him. Given that Police Officer Bernabel was the TS operator at the time, she testified at trial that the phone at the precinct was a landline (Trial Transcript page 15). By applying the experience that most people have regarding the usage of landline phones and now cellular phones, it is unlikely that the phone call was “dropped” or disconnected on Police Officer Bernabel. The complainant did not disconnect the phone call. During her testimony, Police Officer Bernabel was unable to provide a plausible reason for how this phone call became disconnected but just continued to deny

disconnecting the call (Trial Transcript page 14 and page 19). Balancing the commonsense knowledge of how phone calls on cellular phones and landline phones operate, the audio recording of the phone call, and the complainant's statement against Police Officer Bernabel's denial without providing any other reasonable explanation, it is clear by a preponderance of the evidence that Police Officer Bernabel is guilty of Specification Three (3) and CCRB's penalty recommendation of the forfeiture of five (5) vacation days should be imposed.

CCRB disagrees with the Court's finding that Police Officer Bernabel was not guilty of Specification Four (4) and its conclusion that Police Officer Bernabel's "testimony at trial was candid and convincing, in particular as she described being nervous and unsure of whether she was permitted to ask questions, or make demands during an official interview" (Draft Decision page 10). While the Court may credit Police Officer Bernabel's naivety, CCRB does not.

CCRB agrees that Police Officer Bernabel was a "young officer" (Draft Decision page 8) at the time that it is alleged that Police Officer Bernabel hung up the phone on the complainant back on August 20, 2020. However, Police Officer Bernabel was no longer a young officer when she gave her official statement to CCRB—by the time of that statement, Police Officer Bernabel had been a member of service for over two (2) years. Regardless of how many years she may have as a member of service, Police Officer Bernabel knows that she mandated to be truthful during official statements and it is clear by a preponderance of the evidence that Police Officer Bernabel intended to mislead CCRB's investigation during her official statement.

Despite the Court stating, "compounding an already unsettling situation was the fact that the interview was conducted virtually, via Microsoft TEAMS, which can make communication even more challenging," any potential communication issue related to the interview being conducted virtually was not testified to or alleged by Police Officer Bernabel. Regardless of the interview taking place virtually using Microsoft TEAMS, Police Officer Bernabel was represented by counsel during her statement and acknowledged that her attorney was physically present in the room with her during the statement (Trial Transcript page 20). Police Officer Bernabel had counsel readily available but failed to avail herself of counsel's assistance and then turned around and blamed counsel for not "saying anything" (Trial Transcript page 14). Police Officer Bernabel could have asked her attorney about the subject matter of this interview prior to the interview, but she did not (Trial Transcript page 13, page 16, and page 18). At any point in time during that statement, Police Officer Bernabel could have stopped and asked her counsel or the investigator what the interview was about or what incident they were referring to, but she did not. Instead, when Police Officer Bernabel was confronted with the audio recording of the phone call where she failed to provide her name and shield number and then disconnected the call on the complainant, she denied everything and did so with an intention to mislead CCRB's investigation. While the Court believes that Police Officer Bernabel was "nervous and unsure of whether she was permitted to ask questions or make demands during an official interview," this argument falls flat when considering all the facts and evidence in this case.

Given that Police Officer Bernabel repeatedly denied refusing to provide her name and shield number and disconnecting the phone call, despite being presented with an audio recording of the incident and identifying her voice as the voice in the audio recording, it is clear by a preponderance of the evidence that Police Officer Bernabel provided a misleading official statement to CCRB and that she did so intentionally. Therefore, Police Officer Bernabel should be found guilty of Specification Four (4) and CCRB's penalty recommendation of the forfeiture of thirty (30) vacation days and dismissal probation should be imposed.

CONCLUSION

For all the aforementioned reasons, CCRB requests that you accept ADCT Stone's findings and find Police Officer Bernabel Guilty of Specification One (1) and Specification Two (2) with the penalty imposed being the forfeiture of three (3) vacation days. CCRB also requests that you reject ADCT Stone's findings and find Police Officer Bernabel Guilty of Specification Three (3) and Specification Four (4) and impose CCRB's recommendation of the forfeiture of five (5) vacation days for Specification Three (3), and the forfeiture of thirty (30) vacation days and dismissal probation for Specification Four. CCRB requests that you impose CCRB's total penalty recommendation for all four specifications, which is the forfeiture of thirty-eight (38) vacation days and dismissal probation.

Respectfully submitted,

Theresa Freitas

Theresa Freitas
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

CC: Stuart London, Esq.